

25STCV25900 25STCV25900

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-07-30

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Case Number: 25STCV25900 Hearing Date: July 30, 2026 Dept: 534

Background

On September 4, 2025, Jose Manuel Dulanto filed this action against Archbishop William E. Lori; David B. Simpson; Knights Of Columbus; Steve Owens; Jennifer M. Fontaine; Aaron A. Buckley; Michael P. Linfield; Terry Green; Natalie P. Stone; Gonzalo C. Martinez; Elwood Lui; David W. Slayton; Eva McClintock; Wolfflick, Simpson, Kachaturian & Bouayad; Simpson Employment Law APC; Paul-Plevin-Sullivan-&-Connaughton LLP; and Quarles & Brady LLP asserting nine causes of action.

On March 6, 2026, Judge Cherol J. Nellon issued an order relating BC656164 and 25STCV25900 and transferring this action to Department 14 [renumbered as of May 4, 2026 to Department 300.]

On March 30, 2026 and April 1, 2026, Plaintiff filed motions for reconsideration of the March 6, 2026 order in BC656164. Judge Nellon denied the motions on June 11, 2026.

On June 11, 2026, Judge Nellon sustained Defendants the Honorable Elwood Lui, Administrative Presiding Justice of the California Court of Appeal, Second Appellate District; the Honorable Gonzalo C. Martinez, Presiding Justice of the California Court of Appeal, Second Appellate District, Division Seven; the Honorable Natalie P. Stone, Associate Justice of the California Court of Appeal, Second District, Division Seven; the Honorable Terry Green, the Honorable Michael P. Linfield, Judges of the Superior Court of California, County of Los Angeles (Ret.); Eva McClintock, Clerk/Executive Officer, California Court of Appeal, Second Appellate District; and David W. Slayton, Court Executive Officer and Clerk, Superior Court of California,

County of Los Angeles demurrer without leave to amend.

On June 18, 2026, Judge Nellon sustained
Defendants Quarles & Brady LLP; Paul, Plevin, Sullivan & Connaughton
LLP And Aaron A. Buckley's demurrer without leave to amend.

On June 25, 2026, Judge Nellon sustained Defendants
Steve Owens, David B. Simpson, and Simpson Employment Law, APC's demurrer to
the complaint without leave to amend.

Motion

On June
29, 2026, Plaintiff filed the instant motion, with the hearing set in
Department 534, for an order vacating the relation order issued on March 6,
2026.

Opposition

In
opposition, Defendants Steve Owens, David B. Simpson, and Simpson Employment
Law, APC contend the motion is not properly before this department, there was
no underlying fraud, and Plaintiff makes no argument that the ruling was
substantively incorrect.

Reply

The
Court did not receive a timely reply. (Code Civ. Proc. § 1005.)

Discussion

Absent
express authority by rule or statute, or the unavailability of the original
judge, a trial judge may not vacate a ruling made by another trial judge. (People
v. Woodard (1982) 131 Cal.App.3d 107, 111 ("The Superior Court of Los
Angeles County, though comprised of a number of judges, is a single court and
one member of that court cannot sit in review on the actions of another member
of that same court."); In re Alberto (2002) 102 Cal.App.4th 421, 427
("For one superior court judge, no matter how well intended, . . . to nullify a

duly made, . . . ruling of another superior court judge places the second judge in the role of a one-judge appellate court.”.)

Department

534 is solely vested with authority to review related case rulings “[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases.” (SCLAC Local Rules, rule 3.3(f)(2); Cal. R. Ct., rule 3.300(h)(D).) These rules do not apply here.

Judge

Nellon remains available and Department 534 lacks authority to pass judgment on the March 6, 2026 order relating the cases at issue.

The

motion is DENIED.

Conclusion

Plaintiff's

Motion to Vacate Order Issued by Dept. 14 Relating Cases, Self-Assignment and Prejudicial Effects as Procured by Defendant Knights of Columbus through Extrinsic Fraud and Active Concealment is DENIED.

Counsel

for Defendants Steve Owens, David B. Simpson, and Simpson Employment Law, APC is ordered to give notice.